

Business conditions of the auction

("OP")

Introductory provisions

- 1) The auction provided by MCOMM 24 s.r.o., ID 44793294 ("broker") is an intermediation in the sale and purchase of movables. Through the auction, bidders are allowed to offer these movables under the conditions described below to potential bidders who can buy them at auction ("auction"). The auction is not a public auction according to Act No. 26/2000 Coll., On public auctions. The auction is also not an auction within the meaning of Section 1771 of the Civil Code.
- 2) The auction may always take place physically at a place designated by the intermediary and / or remotely as an online auction.
- 3) The term "online auction" means a method of conducting an auction by allowing remote access to and participation in the auction by its participants.
- 4) Before the start of the auction, the auction participants will be acquainted with these OPs and, by participating in the auction, express their consent to them, which they confirm by signing these conditions, including the annexes.

Article I. - Auction participants

- 1) A fully independent person - an entrepreneur who has entered into a written Auction Mediation Agreement with an intermediary is considered to be a bidder ("bidder"). The bidder becomes a participant in the auction by concluding the Auction Mediation Agreement and delivering the subject of the auction at the auction site according to the mediator's instructions, including its handover to the mediator.
- 2) A fully independent person - an entrepreneur who declares his interest in making bids and participates in the auction in person or through his representative (on the basis of a written power of attorney) is considered the buyer ("buyer"). The buyer becomes a participant in the auction by signing these OPs (including attachments) and paying a deposit according to these OPs. The signing of these OPs (including annexes) establishes a contractual relationship between the intermediary and the buyer.
- 3) Candidates or buyers may also be referred to in the following text together as "participant" or "participants", unless the designation of candidate or buyer is explicitly stated. Only entrepreneurs who participate in the auction in connection with the performance of their business activities may be participants in the auction.
- 4) Before the start of the auction, the participant is obliged to provide the intermediary with his identification data, in particular his name and surname / business name, residence / registered office, ID number and his contact details (e-mail, phone number). The buyer's representative is obliged to prove to the intermediary his right to represent him in the auction.

Article II. - Subject and place of the auction

- 1) The subject of the auction may only be movables, namely items which, on the basis of the applicant's declaration, are free from legal defects.
- 2) The intermediary reserves the right to unilaterally decide which items to accept into the auction and which to reject. From the moment the bidder concludes the Auction Mediation Agreement, the subject of the auction is accepted for auction.
- 3) The subject of the auction will always be defined in the Sales Mediation Agreement concluded between the bidder and the intermediary. The auction will publish information on the subject of the auction, which was provided by the bidder, while the bidder is always responsible for the accuracy of the data.
- 4) The intermediary is not liable for any damage caused by false or incomplete information provided by the bidder about the subject of the auction, with which the participants agree.
- 5) The intermediary will always allow the buyer to inspect the subject of the auction. For

this purpose, the bidder is obliged to ensure the transport of the subject of the auction to the place of the auction determined by the intermediary at his own expense and risk.

6) The intermediary is obliged to always inform the bidder about the exact date and place of the auction well in advance, always at least 3 days in advance.

7) The bidder is also obliged to hand over the original of the relevant documentation on the subject of the auction to the intermediary at the place of the auction.

Article III. - Bail

1) The condition for participation in the auction is the deposit of the buyer. The buyer is obliged to pay a deposit of CZK 20,000 no later than the start of the auction, in favor of the bank account of the intermediary No. (27- 3556270237/0100), or in cash to the bidder ("deposit").

2) At the moment of acceptance of the deposit by the intermediary, the buyer becomes a participant in the auction and is entitled to make bids.

3) If the buyer is obliged to pay any amount under these conditions (especially the obligation to pay the purchase price or contractual penalty), the broker is entitled to unilaterally set off the deposit made by the buyer (the buyer's claim for its return), even in the case that the receivable from the buyer would not be due.

4) If the buyer does not become the winner of the auction, the intermediary is obliged to return the deposit to the buyer, within 5 working days from the end of the auction, the other provisions of these OP on offsetting the intermediary's financial claims are not affected.

Article IV. - The course of the auction

1) The auction is started at a place and time determined by the intermediary and will be conducted by the auctioneer appointed by him. The bidder is considered to be a person authorized by the intermediary and the participants in the auction are bound by its instructions.

2) At the beginning of the auction, the bidder sets the minimum price of the subject of the auction ("minimum price").

3) The current price of the subject of the auction means the price of the subject of the auction at which the subject of the auction is continuously offered by the bidder from the moment of the first bid ("current price").

4) The buyer who makes the highest bid in the auction becomes the winner of the auction ("auction winner").

5) The buyer has the right to make bids in the auction, each bid of the buyer is considered a binding proposal to conclude a purchase contract in relation to the bidder and the subject of the auction, where the purchase price offered by the buyer is equal to the minimum price or current price for the buyer's bid.

6) The buyer can make bids from the moment the auction starts and after the announcement of the minimum price. Individual bids can be made by the buyer in any amount (but at least in the amount of CZK 1 above the current price or minimum prices), even repeatedly. The buyer is entitled to make bids until the end of the auction by the bidder. The buyer is not entitled to make negative bids and is also not entitled to change the amount of bids subsequently.

7) If the buyer makes a bid, the bidder will increase the current price of the subject of the auction by the bid made.

8) The process described above will be repeated by the bidder until one of the participants becomes the winner of the auction by no other participant being willing to increase the current price by their bid, or until the bidder closes the auction for other reasons.

9) The auctioneer is not entitled to reduce the current price of the subject of the auction below the minimum price of the subject of the auction during the auction.

10) The auction may be terminated by the bidder by auctioning the subject of the auction,

namely: (i) by auctioning the buyer who made the last bid to whom he increased the minimum or current price ("purchase price") or (ii) because none of the participants made a bid, on the basis of which the minimum price of the subject of the auction would increase. The auctioneer may also terminate the auction for other reasons.

11) All amounts (minimum price, current price, bid, purchase price, etc.) are stated without VAT. The intermediary shall inform the participants no later than at the beginning of the auction whether or not VAT will be added to these amounts.

12) Unless expressly stated otherwise in these OPs, each participant bears its own costs for participation in the auction.

13) The language of the auction may be Czech. The intermediary may translate the documentation or information about the course of the auction into other languages. The decisive version is always the Czech version.

14) Unless otherwise stated in the case of the subject of the auction, all amounts are stated in CZK.

Article V. - Conclusion of the purchase contract

5) The buyer who became the winner of the auction is obliged to enter into a purchase agreement with the bidder, on the basis of which the ownership of the subject of the auction ("purchase agreement") will be transferred to him for consideration, at the purchase price at which the subject of the auction was auctioned by the buyer (and any VAT).

6) The purchase contract is concluded between the buyer as the winner of the auction and the bidder who has authorized the intermediary.

7) The buyer is obliged to enter into a purchase agreement with the bidder within 3 days after the end of the auction by auctioning the subject of the auction, according to the model purchase agreement attached to these OPs. no reservation against them.

Article VI. - Internet auction

1) The auction can also be organized through means of distance communication - on the website (-) operated by the intermediary.

2) In such a case, another condition for participation in the auction for the participant is also the registration via the form located on the website. The course of the auction is similar to that according to these OPs. Any differences in the auction process, which are of a technical nature, are apparent from the auction system after registration.

3) The Intermediary reserves the right to control the beginning, course and end of the Internet Auction, including the right to unilaterally cancel or change the Internet Auction, until the end of the Internet Auction, without any participant arising from the Intermediary.

4) If a price offer is entered under the bidder's access name and password for a specific auction item offered in the online auction, it is considered that it is considered a bid within the meaning of these OPs.

5) The subject of the auction, which is part of the online auction, may be made available to participants for inspection at the place where the auction takes place physically at the same time as the online auction.

6) The intermediary is also entitled to organize a combined auction, where part of the participants

Article VII - Protection of personal data

1) All personal data are handled by the intermediary in accordance with the legal order of the Czech Republic. The Intermediary is entitled to process personal data provided voluntarily by the Auction Participants for the purpose of fulfilling the contract and for the purpose of fulfilling obligations arising from other legal regulations. The intermediary processes the following data: name, surname, residential address, contact details (e-mail,

telephone). The participant undertakes to notify the broker of any changes to this data so that the broker can meet its obligations to process only valid and true data.

2) Personal data is not transferred to any third party, except when personal data are transferred to the counterparty of the intended contract, and only for the purpose of fulfilling the purpose of the auction, and always only to the extent necessary to fulfill it. The data is further collected for statistical, logistical and marketing reasons.

3) All personal data are secured against misuse and the participant has the right to request the correction of personal data and the deletion of their personal data from the database from the intermediary. The intermediary undertakes to delete this information without undue delay upon receipt of the written request.

4) The User may contact the Office for Personal Data Protection with complaints about the handling of personal data: www.uoou.cz.

Article VIII. - Other conditions

1) The intermediary is not liable to the bidder for the proper conclusion of the purchase contract by the auction winner, payment of the purchase price by the auction winner, resp. for its additional payment in excess of the deposit paid or for factual or legal defects of the subject of the auction.

2) The intermediary does not bear any responsibility towards the buyer for defects (factual and legal) of the subject of the auction, even for defects not stated in the description of the subject of the auction.

3) The Intermediary is entitled to terminate the ongoing auction prematurely, even at any time during the auction, regardless of the will of the participants, if the Intermediary has reasonable doubts about the legal or other defects of the subject of the auction or its course. In the event of premature termination of the auction for these reasons, the intermediary is not liable to the participants for any damage, whether direct or indirect, and is not obliged to reimburse them for any costs or other claims.

7) The intermediary is obliged to end the ongoing auction also at the instruction of the bidder, who notifies the intermediary that he does not want to continue the auction after its opening. The auction will be thwarted by the bidder.

8) The auction will be canceled by the bidder also if the bidder does not present the subject of the auction at the place of the auction according to the conditions set by the intermediary.

9) In case of cancellation of the auction by the bidder (both before and after its opening), the bidder is obliged to pay a contractual penalty of 4% of the minimum price of the auction at the broker at the auction place or at the additional request of the broker (according to the broker's choice) or from the price requested by the bidder for the subject of the auction specified in the Auction Mediation Agreement, if the auction is canceled before it starts.

10) Until the bidder pays the intermediary the agreed contractual penalty for the cancellation of the auction, the broker is not obliged to issue the bidder and documents related to the auction, especially a large technical card, and to exercise the right of retention. The agreement on the contractual penalty does not affect the obligation of the interested party to compensate the intermediary for the damage, in full in addition to the contractual penalty.

11) The Bidder undertakes not to alienate or otherwise burden the subject of the auction during the term of the Auction Mediation Agreement. In the event of a breach of this obligation, the bidder is obliged to pay the broker a contractual penalty in the amount of 10% of the required price specified in the Auction Mediation Agreement, the minimum price of the auction subject, within 5 days after the broker calls to do so. The agreement on the contractual penalty does not affect the obligation of the interested party to compensate the intermediary for the damage, in full in addition to the contractual penalty.

12) In the event that the buyer who became the winner of the auction refuses to fulfill its obligation to enter into a purchase agreement for the subject of the auction with the bidder,

the buyer is obliged to pay the intermediary a contractual penalty of 10% of the purchase price of the subject of the auction, within 5 days thereafter. , which will be requested in writing by the mediator. The agreement on the contractual penalty does not affect the buyer's obligation to compensate the intermediary for the damage, in full in addition to the contractual penalty.

Article IX - Final Provisions

1) All relations between the parties arising from this contract are governed by the laws of the Czech Republic. The parties expressly exclude the impact of the provisions of Section 558 of the Civil Code on their legal relationship.

2) The parties shall first try to resolve all disputes arising out of this contract amicably. If the dispute cannot be resolved by agreement of the parties, these disputes will be decided by the locally and substantively competent courts of the Czech Republic.